D. Consumer Commission complaint — preparation draft

DRAFT PREPARED WITH NYAYASETU — NOT SENT, NOT FILED. This is a draft for you to check and edit. It is not a legal notice and not a filed complaint. Verify every fact, complete each [MISSING] and [ADD] field, and remove anything that is not accurate before you use it.

PREPARATION DRAFT ONLY. Consumer Commissions have their own format, affidavit and document requirements, and complaints are filed through e-Jagriti (e-jagriti.gov.in). Use this to organise your facts; check the portal's requirements, and consider asking an advocate or a recognised consumer association to review it before filing.

BEFORE THE [DISTRICT / STATE] CONSUMER DISPUTES REDRESSAL COMMISSION, [MISSING: city / district]

Consumer Complaint No. _____ of 20___ (to be assigned)

IN THE MATTER OF:

[MISSING: your name], [ADD: full address], [MISSING: city / district] — Complainant

VERSUS

1. [MISSING: seller name (see invoice)], [MISSING: seller's registered address (from the invoice / platform seller page)] — Opposite Party No. 1
2. [MISSING: platform / website], [MISSING: platform's registered office address] — Opposite Party No. 2

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

1. The Complainant is a consumer

The Complainant bought the goods for consideration through an online transaction and is a 'consumer' under Section 2(7) of the Consumer Protection Act, 2019. [MISSING: confirm the goods were bought for personal / household use]

2. Facts of the case

1. On [MISSING: order date], I placed an order for [MISSING: product] on [MISSING: platform / website], sold by [MISSING: seller name (see invoice)] (Order ID: [MISSING: Order ID]) and paid [MISSING: amount paid].
2. The product was delivered on [MISSING: delivery date]. After delivery it developed a defect. In my words: “I bought something online and it is not working. The company is not helping.”
3. I raised the matter with the seller/platform. What I did: “I called them once but I don't remember when.”
4. As of 7 November 2026, the matter remains unresolved.

3. Grounds

1. The goods supplied suffer from a defect within the meaning of Section 2(10) of the Consumer Protection Act, 2019, which is a ground of complaint under Section 2(6)(ii).
2. Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are defective. Where the platform itself is the seller, Rule 7(4) imposes the same duty.

4. Cause of action

The cause of action arose on [MISSING: order date] when the order was placed, and further on [MISSING: delivery date] and on each date the Opposite Parties failed to resolve the complaint, and it is continuing.

5. Jurisdiction

Pecuniary: value of goods paid as consideration [MISSING: amount paid] — [ADD: confirm the correct Commission under the Jurisdiction Rules, 2021]

Territorial: the Complainant resides / personally works for gain at [MISSING: city / district], within the limits of this Commission (Section 34(2)(d) of the Act).

6. Limitation

The complaint is filed within two years of the cause of action, as required by Section 69 of the Consumer Protection Act, 2019.

7. Prayer

The Complainant respectfully prays that the Hon'ble Commission may direct the Opposite Parties, jointly and/or severally, to:

1. [MISSING: the resolution you want (refund / replacement / repair)]
2. Pay interest on the amount refunded and the costs of this complaint, as the Hon'ble Commission may deem fit.
3. Grant any other relief the Hon'ble Commission considers appropriate.

8. List of documents

- [MISSING: list of documents you can attach (invoice, payment proof, photos, emails)]

9. Verification

I, [MISSING: your name], the Complainant, state that the facts above are true to my knowledge and belief. [ADD: place, date and signature; affidavit as required by the Commission]

Generated on 2026-11-08 by NyayaSetu (AI-assisted legal information and document-preparation tool). Highlighted lines contain fields you must complete or check.